

Court No. - 32

Case :- WRIT - C No. - 26008 of 2018

Petitioner :- Aniruddha Kumar Pandey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ashish Kumar Misrha,
Kapil Dev Singh Rathore

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Learned counsel for the Electricity Department prays for and is granted three days time for seeking instructions in the matter.

Put up this matter as fresh on 7th August, 2018.

Order Date :- 1.8.2018

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Court No. - 32

Case :- WRIT - C No. - 26008 of 2018

Petitioner :- Aniruddha Kumar Pandey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ashish Kumar Misrha, Kapil Dev Singh Rathore

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Learned counsel appearing on behalf of the Electricity Department prays for and is granted one week's and no more further time to seek instructions in the matter.

Put up as fresh on 16.8.2018.

Order Date :- 7.8.2018

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Petitioner :- Aniruddha Kumar Pandey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ashish Kumar Misrha,
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Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari to set aside the impugned order dated 06.06.2018 (Annexure 8 to the writ petition) passed by Collector, Maharajganj (respondent no. 4).

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to give effect the impugned order mentioned above.

(iii) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 3 to issue a fresh bill on the basis of meter reading.

(iv) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 4 to adjust the amount deposited by the petitioner against the dues to the collection Amen."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10

days from today, his application may be considered and decided by the said authority within 7 days by a speaking order.

For a period of 20 days or till the matter is decided by the authority concerned, whichever is earlier, recovery proceedings initiated against the petitioner shall remain stayed.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 16.8.2018

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